BEFORE THE HON'BLE LOKAYUKTA / UPA-LOKAYUKTA, TELANGANA

Lokayukta Case No: 1122/2025/B1 - Reserved for Judgement

SUPPLEMENTARY EVIDENCE / WRITTEN SUBMISSIONS

Last Hearing was on 14th Aug 2026

Date: 10-Oct- 2026

To

The Hon'ble Lokayukta / Upa-Lokayukta,

Office of the Lokayukta,

Basheerbagh, Hyderabad.

Hon'ble Judge,

Subject: Ongoing Complaint No. **1122/2025/B1**

* * *

In the matter of
Complaint concerning

The administrative examination/classification of the on-duty death of **Late Sri G. Krishna Murthy, Sub-Inspector of Police**, who died on **03-02-2001** in accordance with line-of-duty framework.

Most Respectfully Submitted

The Complainant respectfully submits this brief supplementary evidence without seeking to reopen the proceedings or introduce any new factual controversy. The sole purpose of this filing is to place three material documents on record which go directly to the issue already under consideration, namely, whether the death of the deceased officer was examined under the applicable duty-related / Extraordinary Pension framework.

EV-1 — Contemporaneous Telephone Message from Police Department dated 03-02-2001

The contemporaneous Telephone Message issued by the Inspector of Police, Trimulgherry Police Station, addressed to senior police authorities, records that SI Sri G. Krishna Murthy expired with a cardiac problem in the Trimulgherry Police Station building on 03-02-2001 **"while on duty"**. The message further records arrangements for the funeral and Guard of Honour.

This document is significant because it is a contemporaneous departmental record of the occurrence and not a statement subsequently created by the family.

Rec. LOKAYUKTA TELANGANA
12 OCT 2026
at HYDERABAD

EV-2 — Applicable Extraordinary Pension Rules (Appendix-V)

The enclosed extracts of Appendix-V — Extraordinary Pensions recognise the concepts of "risk of office" and "special risk of office" and provide a separate framework for cases falling within those categories.

- Rule 213 specifically provides that where a Government servant dies as a result of "risk of office" or "special risk of office", the Extraordinary Pension Rules shall apply.
- Rule 216 provides for family benefits in such cases, subject to the applicable conditions.
- Rule 220 requires that the circumstances of the death be placed before the competent authority, including a full statement of the circumstances in which the death occurred and appropriate medical / reliable evidence concerning the death.

Therefore, the mere medical description of the event as a "cardiac problem" does not, by itself, answer the separate administrative question of whether the death had the requisite nexus with official duty under the applicable rules.

EV-3 — High Court Authority

The Complainant also places on record the judgment of the Hon'ble High Court of Delhi in *Rinku Devi v. Union of India & Ors.*, W.P.(C) No. 9370/2025, decided on 09-01-2026, concerning an Extraordinary Pension claim arising from the death of a Government employee who suffered a heart attack while performing assigned duty.

In that case, the respondents had treated the death as a natural cause and rejected the claim for Extraordinary Pension. The Court considered the relationship between the cardiac event and the stress and strain of Government duty, relying upon the earlier decision in *Sunita Devi v. Union of India & Ors.* The Court rejected the respondents' contention that a heart attack could not be considered as a disease affected by stress and strain and consequently held the petitioner entitled to Extraordinary Pension and ex-gratia compensation.

The Complainant does **not** rely upon EV-3 for the proposition that every cardiac death occurring during duty is automatically a Line-of-Duty death. Rather, EV-3 is relied upon as judicial authority demonstrating that a cardiac death occurring in the course of assigned Government duty should not be rejected merely by describing it as a "natural" heart attack, without proper consideration of the relationship between the cardiac event, the stress and strain of duty, and the applicable Extraordinary Pension framework.

Submission on the Combined Effect of EV-1 to EV-3

The three documents, read together, establish a material issue requiring a reasoned finding:

(i) The contemporaneous police record states that the deceased SI suffered the fatal cardiac event **"while on duty"**;
(ii) The applicable Extraordinary Pension framework expressly recognises "Risk of Office / Special Risk of Office" and requires the circumstances in which the death occurred, together with appropriate medical or reliable evidence, to be placed before the competent authority for consideration.
(iii) The Hon'ble High Court of Delhi in *Rinku Devi* has recognised that a cardiac death occurring during assigned Government duty cannot be rejected from consideration under the Extraordinary Pension framework merely on the basis that the medical event was a heart attack or was described as a natural cause.

Accordingly, the central issue is not merely what the medical cause of death was, but whether the competent authority ever independently examined the duty nexus / attribution of the death to service under the applicable Extraordinary Pension Rules, particularly in light of the contemporaneous departmental record stating that the deceased officer died "while on duty".

Prayer

In view of the above, the Complainant respectfully prays that, before passing final orders in Lokayukta Case No. 1122/2025/B1, this Hon'ble Institution may kindly

1. Take EV-1, EV-2 and EV-3 on record and consider them in the final order;
2. Record a specific finding as to whether the contemporaneous departmental record stating that the deceased officer died "while on duty" was considered by the competent authorities while determining the nature / classification of his death;
3. Record a specific finding as to whether the Extraordinary Pension Rules concerning Risk of Office / Special Risk of Office were independently examined and applied to the circumstances of the death;
4. If such an examination was not undertaken, consider directing the competent authority to undertake a reasoned examination of the duty nexus in accordance with the applicable rules, rather than treating the description of the medical event alone as determinative; and
5. Pass such further order as this Hon'ble Institution may deem fit and proper in the interests of justice.

The Complainant respectfully submits that this supplementary filing is made before final orders so that the above material documents and the specific issues arising from them form part of the record and receive due consideration in the final decision.

Yours faithfully



Ganti Vishnu Sharma
S/o Late Sri G. Krishna Murthy,
Sub-Inspector of Police, SIT,
Hyderabad
Flat No. 102A Block, Meghadri Heights Apartments, Yapral,
Secunderabad -500087

Enclosures Copy of

EV-1: Telephone Message dated 03-02-2001.

EV-2: Relevant extracts of AP Extraordinary Pension Rules — Appendix-V.

EV-3: Rinku Devi v. Union of India & Ors., High Court of Delhi, W.P.(C) No. 9370/2025, judgment dated 09-01-2026

TELEPHONE MESSAGE

TO

COMMISSIONER OF POLICE, ADDL. COMMISSIONER OF POLICE, JT. CP CO-ORDINATION, & SIT. HYDERABAD-CITY.

INFORMATION: DY. COMMISSIONER OF POLICE, NORTH-ZONE, DY. COMMISSIONER POLICE, SIT, DY. COMMISSIONER OF POLICE HEAD QUARTER AND DY. COMMISSIONER OF POLICE ADMIN, HYDERABAD.

FROM: INSPECTOR OF POLICE, TRIMULGHERRY POLICE STATION, SEC'BAD.

THE SI SRI. G.KRISHNA MURTHY WHO IS ATTACHED FROM SIT TO RAKSHAK MOBILE VII SECUNDERABAD HAS EXPIRED WITH CARDIAC PROBLEM IN THE TRIMULGHERRY POLICE STATION BUILDING ON 3-2-2001 WHILE ON DUTY(.) HIS FUNNERAL WILL TAKE PLACE ON 04-02-2001 FROM HIS HOUSE NO.29-1382/2/79 SAMATHANAGAR NEREDMETT(.) THE DY. COMMISSIONER OF POLICE HEAD QUARTER IS REQUESTED TO ARRANGE GUARD OF HONOUR AND AMBULANCE FOR CARRYING CORPSE ON 04-02-2001.

3/2/2001

INSPECTOR OF POLICE,
TRIMULGHERRY-PS, SEC.
C. TRIMULGHERRY
SECUNDERABAD

...

(1) C.P. Hyd RTP 3/2/2001. CP camp (HO)

(2) Addl. Commr. of Police, Hyd

(3) Jt. C.P. Co-ordination, SIT, Hyd

(4) DCP North-zone

(5) DCP SIT

(6) DCP Head Quarters

(7) D.C.P Admin, Hyd.

(8) ACP R'pet, Sec-Bad

Sha 3/2/200 (Date)

COMMISSIONER OF POLICE

APPENDIX - V

Extraordinary Pensions

(Extract from Manual of Pensions issued in 1976)

209. Extraordinary pension is sanctioned under the Extraordinary Pension Rules, Andhra Pradesh Extraordinary pension/gratuity/family pension is awarded to a person to whom these rules are applicable vide para 210 below and who suffers an injury or is killed or dies as a result of accident or violence. It is also awarded to those who contract.

(i) venereal disease or septicaemia whether such disease is contracted by a medical officer as a result of attendance in the course of his official duty on any patient or of conducting post-mortem examination in the course of that duty; or

(ii) a disease solely or directly attributable to an accident; or

(iii) an epidemic disease contracted by an officer in consequence of his being ordered on duty to an area in which such disease is prevalent or in consequence of his attending voluntarily out of humanitarian motives, upon any person suffering from any such disease, in any area where he happens to be in the performance of his duties. The injury or disease may be a risk of office or special risk of office. The term “accident”, “disease”, “injury”, “risk of office” and “special risk” and “violence”, are defined in the rules. These terms, therefore, have the specific meaning, as defined in these rules, in the application of these rules.

209.1 This is a special award in addition to the pension or gratuity admissible under any other rules unless stated otherwise in the rules.

210. **To whom applicable** :- It shall apply to all persons paid from civil estimates other than those to whom the Workmen’s Compensation Act 1923 (Act VIII of 1923) applies, whether their appointment is permanent or temporary or on time scale of pay or fixed pay or piece-work rates, who are under the rule-making control of the State Government.

211. **Competent authority to award Extraordinary Pension :-** Extraordinary pension is awarded under these rules with the sanction of the

State Government only. In making an award the State Government may take into consideration the degree of default or contributory negligence on the part of the Government servant who sustains an injury or dies as a result of an injury or is killed.

212. **Award of extraordinary pension not to affect other pensions unless where so stated in the rules - not to be taken into account for fixing pay on re-employment:-** An award made under these rules except where otherwise stated in the rules, shall not affect any other pension or gratuity for which the Government servant concerned or his family may be eligible under any other rules and the pension granted under the provisions of these rules shall not be taken into account in fixing the pay of the pensioner on his continued employment or re-employment in Government service.

213. **Extraordinary Pension Rules to prevail where these rules and Family Pension Rules of 1964 are applicable in certain cases :-** In respect of cases arising on and after 24-1-1969 family pension to the families of Government servants governed by the Family Pension Rules of 1964 as well as the Extraordinary Pension Rules of Andhra Pradesh, who die as a result of “risk of Office” or “special risk of office” as defined in these rules, shall be paid only under these rules and not under the Family Pension Scheme of 1964. For the purposes of the Extraordinary Pension Rules, “injuries”, as defined in the rules, are classified into 3 classes and depending upon the class under which the injury sustained by a Government servant falls, the gratuity or pension admissible to him has to be determined with reference to rule 9 of the Extraordinary Pension Rules. The classification of injuries are as follows :

Class ‘A’ :- Injuries caused as a result of special risk of office which have resulted in the permanent loss of an eye or a limb or are of a more serious nature.

Class ‘B’ :- Injuries caused as a result of special risk of office and equivalent, in respect of the degree of disablement which they cause to the loss of a limb or are very severe; or injuries caused as a result of risk of office which have resulted in the permanent lost of an eye or limb or are of a more serious nature.

Class ‘C’ :- Injuries caused as a result of special risk of office which are severe, but not very severe, and likely to be permanent; or injuries caused as

a result of risk of office which are equivalent, in respect of the degree of disablement which they cause, to the loss of a limb or which are very severe and likely to be permanent.

214. **Temporary pensions also admissible :-** These rules also provide for grant of temporary pensions which are continued from year to year on the certificate of a Medical Board in certain specified cases as provided for in the rules.

215. **Temporary pensions can be converted into permanent pensions under certain circumstances :-** The temporary pension awarded under these rules may be converted into a permanent injury pension when the government servant is invalidated out of service on account of the injury in respect of which the temporary pension was awarded; or when the temporary pension has been drawn for not less than 5 years; or at any time if the Medical Board certifies that is sees no reason to believe that there will ever be a perceptible decrease in the degree of disablement.

216. **Scale of benefit***s* :- The scale of benefits admissible to widows and children of a Government servant, when the Government servant is killed or dies of injury received as a result of "special risk of office" or "risk of office" as the case may be (as defined in the rules) is admissible at the scale given in the rules (vide Rule 10 of the Extraordinary Pension Rules).

216.1. In the case of widows and motherless children of Government servants governed by the Andhra Pradesh Government Servants (Family Pension) Rules 1964 and the Extraordinary Pensions Rules, who are killed or who die of injury received as a result of "special risk of office" or "risk of office" as the case may be (as defined in the Rules) will be granted family pension under the Extraordinary Pension Rules at the scales, laid down in these rules besides gratuity if admissible under the provisions of Rule 10 of these rules.

216.2 **Payment to widows where more than one widow is left behind and one of whom is totally denied a share in the property left behind** :- In the event of Government servant leaving behind two or more lawful widows, the pension or gratuity admissible under these rules to the widows shall be divided equally among all the widows. If, however, any of widows is totally denied any share in the property of the Government servant under a will or deed made by him, such widow shall be ineligible to receive any award and shall not be taken into account for the purposes of these rules.

216.3 **Payment where any one widow is left behind but is totally denied a share in the property of the deceased** :- In the event of a Government servant leaving behind only one widow who is totally denied any share in the property of the Government servant under a will or deed made by him, she shall be ineligible to receive any award under these rules.

216.4 **Payment where no widow or children are left behind** :- If the deceased Government servant has left neither a widow nor a child, an award may be made to his father and his mother individually or jointly and in the absence of the father and the mother, to minor brothers and sisters, individually or collectively, if they were largely dependent on the Government servant for support and are in pecuniary need; but the total amount of the awards in the case shall not exceed one-half of the pension that would have been admissible to the widow under rule 10; and that each minor brother's and sister's share should not exceed the amount of pension specified in Schedule III (appended to these rules) for a "child who is not motherless".

216.5 Any award made to the father or mother or minor brothers and sisters will, in the event of an improvement in the pecuniary circumstances of the pensioner, be subject to review in such manner, as the State Government may by order prescribe.

217. **Where award under these rules not admissible** :- No award shall be made in respect of :

(i) an injury sustained more than five years before the date of application; or
(ii) death which occurred more than seven years
(a) after the injury due to violence or accident (as defined in the rules) was sustained; or
(b) after the Government servant was medically reported as unfit for duty on account of the decease of which he died.

218. **Date of effect** :- The Family Pension under these rules will take effect from the day following the date of death of the Government servant or from such other date as the State Government may decide.

219. **Tenure of pensions** :- The Extraordinary Family Pensions will be tenable :-

(a) in the case of a widow or mother until death or remarriage whichever occurs earlier.

(b) in the case of a minor son, or minor brother, until he attains the age of 18;

(c) in the case of an unmarried daughter or minor sister until marriage or until she attains the age of 21 whichever occurs earlier; and

(d) in the case of a father, for life.

220. **Procedure for award of Pensions** :- In respect of matters of procedure, all awards under these rules are subject to any procedural rules relating to ordinary pensions to the extent that such procedural rules are, applicable and are not inconsistent with these rules.

220.1 When a claim for any injury pension or gratuity or family pension arises, the head of the office or of the department in which the injured, or the deceased Government servant was employed will forward the claim through usual channel through the Accountant General to the State Government with the following documents :-

(i) A full statement of circumstances in which the injury was received; the disease was contracted or the death occurred;

(ii) The application for injury pension or gratuity in Form A, or as the case may be, the application for family pension in Form B.

(iii) In the case of an injured Government servant or one who has contracted a disease, a medical report in Form C. In the case of a deceased Government servant a medical report as to the death or reliable evidence as to the actual occurrence of death if the Government servant lost his life in such circumstances that a medical report cannot be secured.

220.2 The audit officer shall furnish a report as to whether an award is admissible under the rules and; if so, of what amount.

221. **Extraordinary Pension Rules applicable to air journeys** :- The Extraordinary Pension Rules, Andhra Pradesh shall apply to air journeys also, just as they apply to other modes of journeys according to circumstances of each case. An officer who travel on duty by air under proper authority and receives an injury and the family of an officer who meets with death while so travelling, shall be eligible for compensation under the Extraordinary Pension Rules, Andhra Pradesh, provided the case satisfies the other conditions in these rules. An officer travelling on duty by air should

be regarded as exposed to “special risk of Office” as defined in Rule 3(7) of the Extraordinary Pension Rules, Andhra Pradesh.

(G.O.Ms.No.411, Finance, dated 17th June, 1963)

222. **Where an opinion of Medical Board is shown to be an error of judgement a second Medical Board can be constituted** :- Where the Government are satisfied on the evidence placed before them by a Government servant in respect of whom a medical report for the purpose of grant of wound or other Extraordinary Pension has been received by them, of the possibility of an error of judgement in the decision of the Medical Board which examined him, Government may direct a second Medical Board consisting of members, other than those who constituted the first Medical Board, to examine the officer and submit a report to the Government in the matter; pension shall be granted to the Officer in accordance with the decision of the second Medical Board.

(G.O.Ms.No.225, Finance, dated 4th November, 1966)

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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

% Date of Decision : 09.01.2026

\+ W.P.(C) 9370/2025

RINKU DEVI W/O EX CT/GD LATE SH MANISH KUMAR NO.015190682 .....Petitioner

Through: Mr. Gaurav Sarawat, Mr. M. K. Gaur and Mr. V. Srivastava, Advs.

versus

UNION OF INDIA & ORS.

.....Respondents

Through: Mr. Amit Tiwari, CGSC, Ms. Ayushi Srivastava, Mr. Ayush Tanwar, Mr. Arpan Narwal and Mr. Kushagra Malik, Advs.

CORAM:
HON'BLE MR. JUSTICE V. KAMESWAR RAO
HON'BLE MS. JUSTICE MANMEET PRITAM SINGH ARORA

V. KAMESWAR RAO, J. (ORAL)

1. This petition has been filed by the petitioner with the following prayers:-

> *"a) Directing the respondents to place the relevant records, pertaining to the present writ petition before their lordships for the proper adjudication in matter in the interest of justice.*
> *b) Quash and setting aside the impugned order dt. May 2025 (Annexure P/1) declining the claim of the petitioner on the premises that the husband of the*

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applicant died due to natural cases (Heart Attack), not attributable to Government service, and the applicant is not eligible to EOFP and Ex-Gratia payment, further directing the respondent to grant Extra Ordinary pension and Ex-Gratia payment from the date of the death of petitioner's husband w.e.f. 23.10.2021 under CCS (EOP) Rules and in view of the law laid down by the Hon'ble High Court of Delhi on 26.03.2025 in WP(C) 12256/2022 titled as Sunita Devi Vs UOI & Ors, dt. 15.10.15 in WP(C) 6351/2013, titled as Rajesh Kumari Vs. UOI & Ors and dt. 10.04.19 in WP (C) 2684/2017 titled as Ranju Devi Vs. Union of India & Ors. with all other consequential benefits i.e. the arrears of differences with interest etc."

2. The petitioner is the wife of the late Head Constable/GD Manish Kumar. Her case is that her husband was enrolled with the respondents/Central Reserve Police Force as Constable with effect from 22.03.2001. On 23.10.2021, the husband of the petitioner was assigned duty of maintaining law and order at Ghazipur border during farmer's protest. He had informed the Assistant Commandant/Company Commander about his ill health, resulting the petitioner's husband being sent to common M.I. Room Bawana wherein on medical examination, he was referred to Mahrishi Valmiki Hospital Bawana wherein the Doctors declared him as 'brought dead'. The cause of the death as opined by the Doctors was due to heart attack. A Court of Inquiry was conducted on 20.09.2004 wherein it is established that the husband of the petitioner had died due to Coronary Artery insufficiency and its complications. It is also held the same to be a natural cause of death (heart attack). On 24.10.2021/07.07.2022, a Pension Payment Order was issued granting ordinary family pension. The claim of

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the petitioner was for extraordinary pension and *ex gratia* payment.

3. On 20.11.2024, the petitioner submitted her representation for grant of extraordinary family pension and *ex gratia* payment as per Central Civil Services (Extraordinary Pension) Rules, 1939 ["CCS (EOP) Rules]. The respondents declined the request of the petitioner in the month of May, 2025 by referring to Rule 9(2), 10, 11(1) and Schedule B of the CCS (EOP) Rules holding that the death or disability cases are characterised in 5 distinct categories. The case of the death of the husband of the petitioner would as per the respondent fall in category-A, which is defined as death or disability due to natural causes not attributable to Government service, e.g. chronic ailments such as heart and renal diseases, prolonged illness, accidents while not on duty. It was their stand that as the husband of the petitioner has died due to natural causes not attributable to Government service, therefore, she is not eligible to the extraordinary family pension and ex-gratia payment.

4. The submission of Mr. M. K. Gaur, learned counsel for the petitioner is that the issue that death because of heart attack is relatable to stress and strain of the duty and as such, the relatable benefits need to be granted to the dependent of the deceased employee is well settled by the Coordinate Bench of this Court in the case of ***Sunita Devi v. Union of India & Ors., 2025:DHC:2865-DB*** wherein the husband of the petitioner therein had died after suffering cardiac arrest while participating in the Field Physical Efficiency Test.

5. The stand of the respondents therein is that the employee had died because of heart attack and since, heart attack is not a disease, which is caused by stress and strain, in terms of instructions issued at the relevant

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time, the wife cannot be granted the extraordinary pension, was negated by this Court by stating in the said judgment in paragraphs 8 and 9 as under:-

> *"8. Diseases affected by stress and strain are enumerated under Head B in Schedule I-A, thus:*
>
> *"(B) Diseases affected by stress and strain:*
>
> *(i) Psychosis and Psychoneurosis;*
> *(ii) Hyperpiesia;*
> *(iii) Hypertension (Blood Pressure);*
> *(iv) Pulmonary Tuberculosis;*
> *(v) Pulmonary Tuberculosis with pleural effusion;*
> *(vi) Tuberculosis - Non-pulmonary:*
> *(vii) Mitral Stenosis;*
> *(viii) Pericarditis and adherent pericardium;*
> *(ix) Endo-carditis;*
> *(x) Sub-acute bacterialendo-carditis, including infective*
> *endocarditis;*
> *(xi) Nyocarditis - acute or chronic;*
> *(xii) Valvular disease;"*
>
> *9. Though, strictly speaking, a heart attack is not included as one of the diseases affected by stress and strain, we are of the opinion that a reasonable and meaningful interpretation has to be accorded to the Schedule. When the Schedule includes hypertension and valvular disease in the list of diseases covered under Head B, as diseases affected by stress and strain, it is irrational and illogical to hold that if a person suffers a heart attack, it would not be covered under the Schedule. This would also render the Schedule prima facie arbitrary, and it is a well settled principle of interpretation that any interpretation which renders a statutory provision to be arbitrary or unconstitutional must be avoided."*

6. Suffice to state that Mr. Gaur during the course of his submissions has

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referred to the notification issued by the Ministry of Personnel Public Grievances and Pension on 30.01.2023 wherein the Ministry has issued a notification, notifying the Rules called the Central Civil Services Extraordinary Pension Rules, 2023 whereby under Rule 4(d)(12), which deals with the diseases effected by stress and strain, the respondents have included heart attack and cardio related diseases.

7. On the other hand, the counsel for the respondents would justify the impugned order of May, 2025 of the respondents stating that in the given facts, the death of the husband of the petitioner is not attributable to Government service. More specifically, in view of the instructions existing at the time of the death of husband of the petitioner.

8. Having heard the learned counsel for the parties, it is a conceded position that the husband of the petitioner had complained of his illness when he was assigned duty of maintaining law and order at Ghazipur border and he was taken to the hospital where he was declared 'dead'. The conclusion drawn by Doctors is that as the same was because of the heart attack. The issue as to whether heart attack can be construed as a disease effected by stress and strain has been conclusively decided by the judgment of the Coordinate Bench in the case of ***Sunita Devi (supra)***.

9. If that be so, the only stand taken by the respondents that the heart attack cannot be considered as a disease effected by stress and strain on the date of death cannot be accepted as the said issue is covered by the judgment of Coordinate Bench in ***Sunita Devi (supra)***.

10. We, accordingly, quash the impugned communication of May, 2025 and hold that the petitioner shall be entitled to extraordinary pension and *ex*

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gratia compensation as would be payable to the petitioner from the date of the death of her husband and the same shall be paid within a period of twelve weeks from the date of receipt of copy of this order.

11. With the above directions, we dispose of the present petition.

V. KAMESWAR RAO, J

MANMEET PRITAM SINGH ARORA, J

JANUARY 09, 2026/sr

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